



**Australian Government**  
**Department of Health**  
 Therapeutic Goods Administration

TRIM Ref: D21-2739156

s47F

By Email: s47F

Dear s47F

## FREEDOM OF INFORMATION REQUEST FOI 2389

### Notice of Decision

1. I refer to your request dated 15 February 2021 under the *Freedom of Information Act 1982* (the **FOI Act**), and subsequent correspondence between you and the TGA, in particular, your email of 2 May 2021, in which the scope of your request was clarified as being for the following documents for the Pfizer COVID-19 vaccine (without personal information or duplicates):

| Module/Evaluation Area | Document/s                              |
|------------------------|-----------------------------------------|
| OVERALL                | Delegate's Overview                     |
|                        | Approval letter                         |
| ACV External Committee | Background document                     |
|                        | Ratified Minute                         |
| Reports                | Clinical overview                       |
|                        | Toxicology overview/Non-clinical review |
|                        | Risk Management Plan                    |

### Scope of the FOI request

2. As you are aware, the TGA was of the preliminary view that the scope of your request may be too voluminous to process. As a result, the TGA suggested revising the scope of your request and you agreed. As per the schedule, the TGA identified seven documents, of approximately 632 pages, falling within the scope of your request.

### Background

3. On 15 February 2021, the TGA received a request from you under the FOI Act (FOI 2248) (**first request**), for the following documents:

*"I request any and all documents relating or referring to the following regarding COVID-19 vaccine: Pfizer Australia - COMIRNATY BNT162b2 (mRNA)"*

1. Document/s providing the information around the decision to exempt the above mentioned vaccine from the Therapeutic Goods (poisons standard) labelling
2. Document/s providing the full criteria of standards, safety and efficacy for any and all vaccine approvals and how the abovementioned vaccine has met this criteria for provisional use in Australia

3. Document/s providing the difference between the approval of "Provisional Use" and "Full TGA Approval"
  4. Document/s providing a full list of ingredients including any ingredients disclosed and/or undisclosed that are considered poisonous
  5. Document/s providing the clinical trials relied upon for approval, example at what phase of the study/trial including the full list of adverse reactions"
4. On 10 March 2021, the TGA requested an extension of time to respond to the first request.
  5. On 11 March 2021, you agreed to the request for extension of time of 10 March 2021.
  6. On 25 March 2021, the TGA sought an extension of time from the Office of the Australian Information Commission (**OAIC**) pursuant to section 15AB of the FOI Act.
  7. On 1 April 2021, following consultation with you and the TGA, the OAIC granted a 60 day extension in response to the TGA's request of 25 March 2021.
  8. On 29 April 2021, the TGA contacted you to suggest that you consider revising the scope of your request to the following documents on the basis that it was likely that the scope of your request would be too voluminous to process:

| Module/Evaluation Area                                 | Document/s          | Description                                                                                                                                                                                                                                                                               |
|--------------------------------------------------------|---------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| OVERALL                                                | Delegate's Overview | A summary of the evaluation reports, and the reasoning behind the Delegate's proposed decision.                                                                                                                                                                                           |
|                                                        | Approval letter     | The Approval letter is the formal correspondence to the Sponsor regarding the positive outcome of the evaluations process.<br><br>The Approval letter contains; the decision to provisionally approve, duration and commencement of provisional registration, conditions of registration. |
| Advisory Committee on Vaccines (Independent Committee) | Background document | The advisory group for prescription medicines receives this document which includes the overview of the evaluation/Delegates concerns and requests for expert input.                                                                                                                      |
|                                                        | Ratified Minute     | An endorse record of the advisory groups meeting, including resolutions.                                                                                                                                                                                                                  |
| Reports                                                | Clinical overview   | A report summarising the information relating to the clinical aspect of clinical studies and the Pharmacokinetics, Pharmacodynamics, Clinical                                                                                                                                             |

|  |                                         |                                                                                                                                                                                                                                                                                                                                                                      |
|--|-----------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|  |                                         | efficacy, Clinical safety, Ongoing studies, Risk Benefit Assessment, recommendations.                                                                                                                                                                                                                                                                                |
|  | Toxicology overview/Non-clinical review | A report summarising the nonclinical data submitted, evaluation of nonclinical pharmacology and toxicology data submitted. Further, assessment and recommendations for sections of the Product Information that contain nonclinical data, including Use in Pregnancy and pregnancy categorisation.                                                                   |
|  | Risk Management Plan                    | The RMP provides information on a medicine's safety profile, describes the activities of the marketing authorisation holder to further characterise the safety profile during post-marketing (pharmacovigilance activities), and explains the measures that are taken in order to prevent or minimise the medicine's risks in patients (risk minimisation measures). |

9. On 2 May 2021, you agreed to the TGA's proposed revision. The TGA created a new FOI request in relation to the revised scope documents (FOI 2389) (**second request**). However, you advised that you were still seeking the documents in relation to your first request. As you know, the TGA is dealing with you on your first request separately, and has sent you separate correspondence in relation to your first request. Accordingly, I do not discuss your first request further in this letter.
10. On 19 May 2021, you were advised that the cost of processing your second request amounted to s22 . However, the TGA had reduced the total charges payable by you to s22 (for the reasons set out in that correspondence) and you were asked to pay a deposit of s22 . You were also advised at this time that the TGA had commenced third party consultation in relation to the documents.
11. On 25 May 2021, you sought a waiver of fees for the second request on the grounds of public interest.
12. On 24 June 2021, the decision-maker decided to reduce the charges imposed for processing your second request by 75% for the reasons set out in that correspondence. This further reduced the total charges payable by you to s22 , with an initial deposit of s22 .
13. On 5 July 2021, you paid the full amount of s22 for the second request. What follows is the TGA's decision in relation to the second request.

## Decision

14. My decision in relation to the seven (7) documents falling within the scope of your FOI request is to release four (4) of the documents in part and three (3) documents in full. The documents were provided to the TGA as part of the Pfizer's COVID-19 vaccine provisional registration application and as part of the TGA's approval process.
15. At the outset, please note that I have decided to release some information that is not otherwise publicly available, including:

- Document 1: this document is 53 pages of the delegate's overview of COMIRNATY in relation to the provisional registration decision, including a summary of the clinical data and the advice sought from the Advisory Committee on Vaccines (ACV) in relation to a number of questions. Personal information has been removed from this document but otherwise it has been released to you.
  - Document 2: this document is 50 pages and is correspondence from the TGA to Pfizer providing notice of the decision to provisionally register the COMIRNATY vaccine, the decision to approve the product information and the decision to impose conditions under the *Therapeutic Goods Act 1989*. Personal information and formulation and manufacturing information of commercial value has been removed from this document but otherwise it has been released to you.
  - Document 3: this document is 349 pages and includes Pfizer's PowerPoint for a pre-submission meeting with the TGA, Pfizer's pre-submission briefing document for the TGA, the Investigator's Brochure, C4591001 Study Protocol, Vaccine Dosage and Administration Instructions and indicative draft US vial and carton label mock-ups. Formulation, study design and manufacturing information of commercial value, as well as information in relation to Pfizer and the TGA's deliberative processes has been removed from this document but otherwise it has been released to you.
  - Document 4: this document is 13 pages and is the TGA's minutes from an ACV meeting, ratified and sent to Pfizer on 19 January 2021. The document is being released to you in full.
  - Document 5: this document is 75 pages and is the clinical evaluation report for the COMIRNATY vaccine, including the submission details, background, contents of the clinical dossier, pharmacokinetics, immunogenicity, dosage selection for the pivotal studies, clinical efficacy, clinical studies, first round benefit-risk assessment, recommendation regarding authorisation and product documentation. Formulation information and information about the study design of commercial value has been removed from the document but otherwise it has been released to you.
  - Document 6: this document is 58 pages and is the TGA's nonclinical evaluation report of the COMIRNATY vaccine, including conclusions and recommendations, assessment of the pharmacology, pharmacokinetics, toxicity and comments and toxicology studies (including reproductive and developmental studies). Formulation and manufacturing processes and information about the study design of commercial value has been removed from the document but otherwise it has been released to you.
  - Document 7: this document is 14 pages and is the Risk Management Plan for the Australia-Specific Annex. The document is being released to you in full.
16. My decision not to provide you with full access to four of the seven documents is based on the application of sections 47, 47E(d) and 47G(1)(b) of the FOI Act. The reasons for the application of these exemption provisions are set out in detail below. Irrelevant information has also been removed under section 22 of the FOI Act.
17. As the TGA agreed to reduce the charges payable by you to s22 after you requested a waiver on the grounds of public interest and you have now paid the amount of s22, the seven documents can be released to you with this decision.

## Material Considered in Decision-Making

18. In coming to my decision I had regard to the following:

- the correspondence between the TGA and yourself;
- the documents falling within the scope of the FOI request;
- all relevant papers in the TGA FOI processing file;
- the provisions of the FOI Act, in particular sections 22, 47, 47E(d) and 47G(1)(b);
- Parts 5 and 6 of the guidelines published by the Australian Information Commissioner under section 93A of the FOI Act which can be found at <https://www.oaic.gov.au/freedom-of-information/foi-guidelines>;
- consultation with the third party whose documents are involved.

## Reasons for Decision

19. Seven documents have been identified as relevant to your request. A schedule listing the documents identified as falling within the scope of your request are at **Attachment A** and refer to the provisions which are claimed to apply to the documents.

20. As noted above, I have decided to release Documents 1, 4 and 7 in full. In relation to Documents 2, 5 – 6, I have decided to delete some irrelevant information under section 22 and exempt some information under section 47 of the FOI. In relation to Document 3, I have decided to exempt some information under sections 47, 47E(d) and 47G(1)(b) of the FOI Act. A copy of the relevant provisions of the FOI Act is at **Attachment B**.

### ***Subsection 22(1): Documents containing information that is irrelevant to the FOI request***

21. The effect of subsection 22(1) of the FOI Act is that where the granting of access to a document would disclose information that is not within the scope of the request and it is possible to provide a copy with information deleted, the agency can do so unless it is evident that the applicant does not wish to be provided access to such a copy. A copy of subsection 22(1) is at Attachment B.
22. Documents 1 and 2 contain information that does not fall within the scope of your FOI request. Specifically, the documents contain personal information such as individuals' names, phone numbers and email addresses.
23. I consider that to provide you with full access to the documents would disclose irrelevant information that does not fall within the scope of your FOI request. Accordingly, I have decided that the irrelevant information will be deleted under subsection 22(1) of the FOI Act and a copy of the documents, with the irrelevant information deleted, will be provided to you.

### ***Section 47: Documents are exempt documents if they contain a trade secret***

24. Under section 47 of the FOI Act, a document is an exempt document if it contains a trade secret (paragraph 47(1)(a)) or contains information that has commercial value that could reasonably be expected to be destroyed or diminished if it were disclosed (paragraph 47(1)(b)). I consider any information that has a commercial value would also include any information that is a trade secret. Therefore, I have only considered whether the information in question has a commercial value. A copy of paragraph 47(1)(b) is at Attachment B.

25. As set out above, I have decided to release some information that is not otherwise publicly available in Documents 2 – 3 and Documents 5 – 6. Otherwise, I have decided that the remainder of the information is exempt for the reasons set out below.
26. Paragraph 5.205 of the FOI Guidelines states that the following factors may assist in deciding in a particular case whether information has a commercial value:
- whether the information is known only to the agency or person for whom it has value or, if it is known to others, to what extent that detracts from its intrinsic commercial value;
  - whether the information confers a competitive advantage on the agency or person to whom it relates – for example, it if lowers the cost of production or allows access to markets not available to competitors;
  - whether a genuine ‘arm’s-length’ buyer would be prepared to pay to obtain that information;
  - whether the information is still current or out of date (out of date information may no longer have any value); and
  - whether disclosing the information would reduce the value of a business operation or commercial activity – reflected, perhaps, in a lower share price.
27. Having regard to the submissions of the third party (Pfizer) and taking into account the FOI Guidelines, I am satisfied that the following non-public information contained in the document is commercially valuable information, the value of which would be diminished or destroyed if released:
- name of third party testing facility;
  - specific processes, materials, methods and designs used to carry out the study; and
  - comprehensive and detailed data relating to the statistical analysis.

*Whether the information is known only to the agency or person for whom it has value or, if it is known to others, to what extent that detracts from its intrinsic commercial value*

28. As mentioned above, the documents were provided to the TGA as part of Pfizer’s provisional registration application for its COVID-19 vaccine, COMIRNATY. I am satisfied that Pfizer has actively taken steps to ensure the information contained in these documents is not disclosed to the general public or its competitors, rather it has only been submitted (in confidence) to regulatory bodies for the purpose of evaluating the product for supply in relevant jurisdictions.
29. The TGA’s technical experts have indicated that only basic information in the documents are in the public domain. As far as I am aware, the remainder of the information within the documents is not otherwise publicly available in Australia or other jurisdictions.
30. In light of the above, I am satisfied that the relevant information possesses an intrinsic commercial value that has not been diminished by disclosure to others.

*Whether the information confers a competitive advantage on the agency or person to whom it relates – for example, it if lowers the cost of production or allows access to markets not available to competitors*

31. In considering whether this information confers a competitive advantage on the sponsor, I have considered the fact that Pfizer’s vaccine is the first (and currently the only) provisionally approved mRNA vaccine in Australia. Pfizer currently enjoys a certain market share noting its successful provisional registration application.

32. I am aware that there are a great number of other companies around the world attempting to create a viable COVID19 mRNA vaccine with various levels of success. I am satisfied that the release of this information is likely to provide competitors with insights into components of a successful application for the registration of an mRNA vaccine in Australia, and I am of the view that a competitor could use the information to replicate this study without expensing the equivalent financial costs incurred by the third party.

*Whether a genuine 'arm's-length' buyer would be prepared to pay to obtain that information*

33. For the reasons set out above, I am satisfied that a competitor would be prepared to pay to obtain this information to assist it in submitting its own application for a similar product.
34. Pfizer has invested substantial resources into the design and testing of its vaccine and this information would be of value to a competitor seeking to supply a similar vaccine, particularly an mRNA vaccine. I consider that the release of this information could enable a competitor to capitalise on, or replicate, the sponsor's trial results in order to obtain access to the market and/or gain a competitive advantage. On this basis, I am satisfied that a third party would be prepared to pay to obtain this information.

*Whether the information is still current or out of date (out of date information may no longer have any value)*

35. I am of the view that the information is current and retains its value. I note that Pfizer's vaccine has only been provisionally approved for a matter of months, and that there are a great number of competitors around the globe who are in the process of trying to develop vaccines in relation to COVID-19. Additionally, I am aware that COMIRNATY remains the only mRNA vaccine available on the Australian market.

*Whether disclosing the information would reduce the value of a business operation or commercial activity – reflected, perhaps, in a lower share price.*

36. The affected third party did not address this matter in its submission. I am not in a position to speculate on the effect that release may have on the value of Pfizer's business, including its share price.

### **Further and alternative submissions in relation to Document 3**

#### ***Section 47G(1)(b): Documents disclosing business information***

37. Further, and in the alternative to section 47 above, information in Document 3 is conditionally exempt under s 47G(1)(b) of the FOI Act on the basis that the information concerns Pfizer's commercial affairs and any disclosure could reasonably be expected to prejudice the future supply of information to the TGA for the purpose of the administration of a law of the Commonwealth or the administration of matters administered by the TGA.
38. Paragraph 6.199 of the FOI Guidelines states that there must be a reasonable likelihood that disclosure would result in a reduction in both the quantity and quality of business information flowing to the government.
39. Pfizer submitted the relevant information in the documents about its business affairs on the basis that such information was commercially confidential information and would be used to the purposes of an assessment and provisional determination, as opposed to wider public consumption.



40. Pfizer and other sponsors of COVID19 vaccines may be discouraged from providing a similar degree and nature of information if they are concerned that reports (including full clinical and toxicology reports including commercially confidential aspects such as the sponsor's study design, methodology and analysis), received for consideration by the TGA, may be subsequently made public. Australia currently has a small market and the provision of vaccines remains an absolute priority for Australians. I am of the view that releasing this type of information to the public would discourage other sponsors from applying for provisional registration in Australia in relation to COVID19 vaccines and potentially other medicines in the future.
41. Therefore, it could reasonably be expected that there will be a reduction in both the quantity and quality of business affairs information to the government and the reduction will prejudice the operations of the TGA in the current COVID19 environment. In particular, the TGA is concerned that by releasing Pfizer's commercially confidential information and information about its business affairs, there will be a reduction in information from similar sponsors and, furthermore, other sponsors of COVID19 vaccines will not be willing to consider the Australian market.

***Section 47E(d): Documents affecting certain operations of agencies***

42. Further, and in the alternative to the above submissions, information in Document 3 is conditionally exempt under s 47E(d) of the FOI Act on the basis that it is necessary to protect the utility of the pre-submission meeting as a safe place, fostering the ability to have meaningful preliminary discussions with sponsors about all medicines, including COVID19 vaccines.
43. Paragraph 6.95 of the FOI Guidelines states, section 47E of the FOI Act conditionally exempts documents where disclosure would, or could reasonably be expected to, prejudice or have a substantial adverse effect on certain listed agency operations.
44. As set out in paragraph 6.96 of the FOI Guidelines, there are four separate grounds for the conditional exemption, one or more of which may be relevant in a particular case. A document is conditionally exempt if its disclosure under this Act would, or could reasonably be expected to, do any of the following:
  - a. prejudice the effectiveness of procedures or methods for the conduct of tests, examinations or audits by an agency;
  - b. prejudice the attainment of the objects of particular tests, examinations or audits conducted or to be conducted by an agency;
  - c. have a substantial adverse effect on the management or assessment of personnel by the Commonwealth or an agency; or
  - d. have a substantial adverse effect on the proper and efficient conduct of the operations of an agency (s 47E).
45. Paragraph 6.101 of the FOI Guidelines relevantly provides, for the grounds in sections 47E(a) – (d) to apply, the predicted effect needs to be reasonably expected to occur and paragraph 6.123 of the FOI Guidelines relevantly provides, “the predicted effect must bear on the agency’s ‘proper and efficient’ operations, that is, the agency is undertaking its expected activities in an expected manner”.
46. The purpose of the pre-submission meetings includes to obtain a common understanding between the TGA and the sponsor and to resolve any issues before the sponsor submits an application.



Sponsors may submit a range of options to identify potential gaps, noting that this process does not form part of the actual evaluation of the product.

47. Disclosure of this information could reasonably be expected to have a substantial adverse effect on the TGA's proper and efficient conduct of operations because it may impede the flow of information to the TGA and may result in less transparency from sponsors and fewer sponsors coming to market COVID19 vaccines in Australia.

### **Public interest**

48. Paragraph 6.2 of the FOI Guidelines states that conditional exemptions such as sections 47E and 47G are subject to the public interest test. The release of the information in Document 3 can reasonably be expected to prejudice public health or public safety because there is a clear public interest in having sponsors supplying COVID19 vaccines in Australia (see paragraph 6.22(c) of the FOI Guidelines). The release of the information could also reasonably be expected to prejudice the management function of the TGA (see paragraph 6.22(n) of the FOI Guidelines).
49. If we were to release Document 3 in full to the public, there is a real risk that the two current sponsors with provisional approval will no longer be interested in the Australian market and that other sponsors will not consider the Australian market for provisional registration of the COVID19 vaccine. It will therefore prejudice Australia's ability to expand the market of COVID19 vaccines. Without the availability of the COVID19 vaccines in the Australian market, there is a significant risk to public health and public safety, particularly if there is another COVID19 outbreak or if Australia intends to re-open the borders to international travellers in the future. This applies to the general public, i.e. it is in the interest of the public as a whole (as well as in the interests of the health and safety of persons who are immunocompromised or particularly vulnerable to COVID19).
50. The release of the information can reasonably be expected to impede the flow of information to the TGA, particularly in relation to the content of technical information required by the TGA to assess a COVID19 vaccine, and could reasonably be expected to prejudice the TGA's ability to obtain similar information in the future.
51. Release of the documents in part promotes the objects of the FOI Act and informs debate on a matter of public importance, namely, COVID19 and the vaccine rollout. The factors against disclosure of the documents in full (set out above) outweigh those for disclosure of the documents in part and the release of these parts of the documents is not, on balance, in the public interest.

### **Summary**

52. On balance, I am of the view that the information in Documents 2 – 3 and Documents 5 – 6 has a commercial value that could reasonably be expected to be destroyed or diminished if it were disclosed.
53. Further and in the alternative, I am of the view that information in Document 3 is conditionally exempt under sections 47E(d) and 47G of the FOI Act and the release of the information would be contrary to the public interest.
54. Accordingly, parts of the documents (as identified in the schedule at Attachment A) are exempt and therefore have been deleted from the documents.

**Release of Documents**

55. As you have paid the total amount of charges required, amounting to s22 , the documents can be released to you, and they are attached with this letter.

**Review and Complaint Rights**

56. If you are not satisfied with this decision, you can either seek internal review or apply to the OAIC for review of the decision. Further information can be found on the OAIC website at the following link: [www.oaic.gov.au/freedom-of-information/reviews-and-complaints/](http://www.oaic.gov.au/freedom-of-information/reviews-and-complaints/)
57. If you have any queries regarding this matter, please contact s22 on (02) 6289 s22 or the FOI Team on (02) 6289 4630.

Yours sincerely

*Authorised and electronically signed by*

s22

Director

Prescription Medicines Authorisation Branch

Therapeutic Goods Administration

7 July 2021

This document has been released under  
The Freedom of Information Act 1982  
By the Department of Health and Aged Care

FOI Request 2389  
Schedule of Relevant Documents

| Doc. No. | Date            | Description                                                                                                                                                                                                                                                                                                                        | Pages                                                                                                                                                                          | Decision                                            | Relevant Sections of the FOI Act |
|----------|-----------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------|----------------------------------|
| 1.       | 11 January 2021 | <p>Delegate's overview and Request for ACV's advice</p> <p><i>Please note that the information highlighted in yellow (and in some cases, struck-out or underlined) in this document was made to the original document and do not relate to the TGA's views on whether this information should be exempt under the FOI Act.</i></p> | <p><b>Redactions to the following pages:</b></p> <p>5</p> <p><b>Exempt pages:</b></p> <p>Nil</p> <p><b>Release in full the following pages:</b></p> <p>1 – 4</p> <p>6 – 53</p> | Irrelevant material redacted (personal information) | 22                               |

| Doc. No. | Date            | Description                                                                                                                                                     | Pages                                                                                                                                                                                                                   | Decision                                                                                                  | Relevant Sections of the FOI Act |
|----------|-----------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------|----------------------------------|
| 2.       | 24 January 2021 | Notice of decisions to provisionally register medicine(s), to approve product information, and to impose conditions under the <i>Therapeutic Goods Act 1989</i> | <p><b>Redactions to the following pages:</b></p> <p>1, 7, 23 – 25, 27</p> <p><b>Exempt pages:</b></p> <p>Nil</p> <p><b>Release in full the following pages:</b></p> <p>2 – 6</p> <p>8 – 22</p> <p>26</p> <p>28 – 50</p> | <p>Irrelevant material redacted (personal information)</p> <p>Formulation and manufacturing processes</p> | <p>22</p> <p>47</p>              |

|    |                   |                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                                                                                 |                                          |
|----|-------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------|
| 3. | 18 September 2020 | <p>ACV external committee background document: Pfizer's pre-submission meeting PowerPoint for the TGA and Pfizer's pre-submission briefing document for the TGA</p> <p><i>Please note that the tracked comments in this document were made to the original document and do not relate to the TGA's views on whether this information should be exempt under the FOI Act.</i></p> | <p><b>Redactions to the following pages:</b></p> <p>Part 1 of Document 3:</p> <p>21 – 25</p> <p>27 – 34</p> <p>45 – 55</p> <p>61 – 66</p> <p>69</p> <p>71 – 81</p> <p>83 – 87</p> <p>98</p> <p>100</p> <p>107 – 111</p> <p>113 – 116</p> <p>118 – 124</p> <p>127 – 137</p> <p>139</p> <p>142 – 145</p> <p>148 – 151</p> <p>175 – 176</p> <p><b>Exempt pages:</b></p> <p>Nil</p> | <p>47</p> <p>47E(d)</p> <p>47G(1)(b)</p> |
|----|-------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------|

|  |  |  |                                                                                                                                                                                                                                                                                                                                                                                      |  |  |
|--|--|--|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|--|
|  |  |  | <p><b>Release in full the following pages:</b></p> <p>Part 1 of Document 3:</p> <p>1 – 20</p> <p>26</p> <p>35 – 44</p> <p>56 – 60</p> <p>67 – 68</p> <p>70</p> <p>82</p> <p>88 – 97</p> <p>99</p> <p>101 – 106</p> <p>112</p> <p>117</p> <p>125 – 126</p> <p>138</p> <p>140 – 141</p> <p>146 – 147</p> <p>152 – 174</p> <p>177 – 180</p> <p>Part 2 of Document 3:</p> <p>1 – 169</p> |  |  |
|--|--|--|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|--|

| Doc. No. | Date            | Description                                                                 | Pages                                          | Decision        | Relevant Sections of the FOI Act |
|----------|-----------------|-----------------------------------------------------------------------------|------------------------------------------------|-----------------|----------------------------------|
| 4.       | 19 January 2021 | Advisory Committee on Vaccines Meeting 18 Minutes on item 2.1 for COMIRNATY | Release in full the following pages:<br>1 – 13 | Release in full | N/A                              |

This document has been released under  
The Freedom of Information Act 1982  
By the Department of Health and Aged Care



|    |                |                            |                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                       |    |
|----|----------------|----------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------|----|
| 5. | 8 January 2021 | Clinical evaluation report | <p><b>Redactions to the following pages:</b></p> <p>Part 1 of Document 5:</p> <p>10 – 11</p> <p>28</p> <p>30</p> <p>43</p> <p>Part 2 of Document 5:</p> <p>1 – 4</p> <p>11 – 12</p> <p><b>Exempt pages:</b></p> <p>Nil</p> <p><b>Release in full the following pages:</b></p> <p>Part 1 of Document 5:</p> <p>1 – 9</p> <p>12 – 27</p> <p>29</p> <p>31 – 42</p> <p>44</p> <p>Part 2 of Document 5:</p> <p>5 – 10</p> | Study design, formulation and manufacturing processes | 47 |
|----|----------------|----------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------|----|

| Doc. No. | Date | Description | Pages   | Decision | Relevant Sections of the FOI Act |
|----------|------|-------------|---------|----------|----------------------------------|
|          |      |             | 13 – 17 |          |                                  |

This document has been released under  
The Freedom of Information Act 1982  
By the Department of Health and Aged Care

| Doc. No. | Date            | Description                                                                                                                                                                                                                                                                                                                                                              | Pages                                                                                                                                                                                                                                                                              | Decision                                              | Relevant Sections of the FOI Act |
|----------|-----------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------|----------------------------------|
| 6.       | 15 January 2021 | <p>Nonclinical evaluation report</p> <p><i>Please note that the information highlighted in yellow (and in some cases, struck-out or underlined) in this document was made to the original document and do not relate to the TGA's views on whether this information should be exempt under the FOI Act. We will need to make this clear in the decision letters.</i></p> | <p><b>Redactions to the following pages:</b></p> <p>4<br/>7<br/>17 – 19<br/>35 – 37<br/>40<br/>46</p> <p><b>Exempt pages:</b></p> <p>Nil.</p> <p><b>Release in full the following pages:</b></p> <p>1 – 3<br/>5 – 6<br/>8 – 16<br/>20 – 34<br/>38 – 39<br/>41 – 45<br/>47 – 58</p> | Study design, formulation and manufacturing processes | 47                               |

| Doc. No. | Date            | Description                                     | Pages                                          | Decision        | Relevant Sections of the FOI Act |
|----------|-----------------|-------------------------------------------------|------------------------------------------------|-----------------|----------------------------------|
| 7.       | 17 January 2021 | Risk Management Plan – Australia-Specific Annex | Release in full the following pages:<br>1 – 14 | Release in full | N/A                              |

This document has been released under  
The Freedom of Information Act 1982  
By the Department of Health and Aged Care



## Freedom of Information Act 1982

### 11A Access to documents on request

- (5) The agency or Minister must give the person access to the document if it is conditionally exempt at a particular time unless (in the circumstances) access to the document at that time would, on balance, be contrary to the public interest.

Note 1: Division 3 of Part IV provides for when a document is conditionally exempt.

Note 2: A conditionally exempt document is an exempt document if access to the document would, on balance, be contrary to the public interest (see section 31B (exempt documents for the purposes of Part IV)).

Note 3: Section 11B deals with when it is contrary to the public interest to give a person access to the document.

### 22 Deletion of exempt matter or irrelevant material

- (1) Where:
- (a) an agency or Minister decides:
    - (i) not to grant a request for access to a document on the ground that it is an exempt document; or
    - (ii) that to grant a request for access to a document would disclose information that would reasonably be regarded as irrelevant to that request; and
  - (b) it is possible for the agency or Minister to make a copy of the document with such deletions that the copy:
    - (i) would not be an exempt document; and
    - (ii) would not disclose such information; and
  - (c) it is reasonably practicable for the agency or Minister, having regard to the nature and extent of the work involved in deciding on and making those deletions and the resources available for that work, to make such a copy;

the agency or Minister shall, unless it is apparent from the request or as a result of consultation by the agency or Minister with the applicant, that the applicant would not wish to have access to such a copy, make, and grant access to, such a copy.

- (2) Where access is granted to a copy of a document in accordance with subsection (1):
- (a) the applicant must be informed:
    - (i) that it is such a copy; and
    - (ii) of the ground for the deletions; and
    - (iii) if any matter deleted is exempt matter because of a provision of this Act— that the matter deleted is exempt matter because of that provision; and
  - (b) section 26 does not apply to the decision that the applicant is not entitled to access to the whole of the document unless the applicant requests the agency or Minister to furnish to him or her a notice in writing in accordance with that section.

## 27 Consultation—business documents

### *Scope*

- (1) This section applies if:
  - (a) a request is made to an agency or Minister for access to a document containing information (***business information***) covered by subsection (2) in respect of a person, organisation or undertaking; and
  - (b) it appears to the agency or Minister that the person, organisation or proprietor of the undertaking (the ***person or organisation concerned***) might reasonably wish to make a contention (the ***exemption contention***) that:
    - (i) the document is exempt under section 47 (trade secrets etc.); or
    - (ii) the document is conditionally exempt under section 47G (business information) and access to the document would, on balance, be contrary to the public interest for the purposes of subsection 11A(5).
- Note: Access must generally be given to a conditionally exempt document unless it would be contrary to the public interest (see section 11A).
- (2) This subsection covers the following information:
  - (a) in relation to a person—information about the person's business or professional affairs;
  - (b) in relation to an organisation or undertaking—information about the business, commercial or financial affairs of the organisation or undertaking.
- (3) In determining, for the purposes of paragraph (1)(b), whether the person or organisation concerned might reasonably wish to make an exemption contention because of business information in a document, the agency or Minister must have regard to the following matters:
  - (a) the extent to which the information is well known;
  - (b) whether the person, organisation or undertaking is known to be associated with the matters dealt with in the information;
  - (c) the availability of the information from publicly accessible sources;
  - (d) any other matters that the agency or Minister considers relevant.

### *Opportunity to make submissions*

- (4) The agency or Minister must not decide to give access to the document unless:
  - (a) the person or organisation concerned is given a reasonable opportunity to make submissions in support of the exemption contention; and
  - (b) the agency or the Minister has regard to any submissions so made.
- (5) However, subsection (4) only applies if it is reasonably practicable for the agency or Minister to give the person or organisation concerned a reasonable opportunity to make submissions in support of the exemption contention, having regard to all the circumstances (including the application of subsections 15(5) and (6) (time limits for processing requests)).

### *Notice of decision to give access*

- (6) If the agency or Minister decides to give access to the document, the agency or Minister must give written notice of the decision to both of the following:

- (a) the person or organisation concerned;
- (b) the applicant.

*Access not to be given until review or appeal opportunities have run out*

- (7) However, the agency or Minister must not give the applicant access to the document unless, after all the opportunities of the person or organisation concerned for review or appeal in relation to the decision to give access to the document have run out, the decision to give access still stands, or is confirmed.

Note 1: The decision to give access to the document is subject to internal review (see Part VI), review by the Information Commissioner (see Part VII) and review by the Tribunal (see Part VIIA).

Note 2: For when all opportunities for review or appeal in relation to the decision to give access to the document have **run out**, see subsection 4(1).

*Notice and stay of decision not to apply unless submission made in support of exemption contention*

- (8) Subsections (6) and (7) do not apply unless the person or organisation concerned makes a submission in support of the exemption contention as allowed under paragraph (4)(a).

*Edited copies and business information*

- (9) This section applies:
- (a) in relation to an edited copy of a document—in the same way as it applies to the document; and
  - (b) in relation to a document containing business information—to the extent to which the document contains such information.

## **27A Consultation—documents affecting personal privacy**

*Scope*

- (1) This section applies if:
- (a) a request is made to an agency or Minister for access to a document containing personal information about a person (including a person who has died); and
  - (b) it appears to the agency or Minister that the person or the person's legal personal representative (the **person concerned**) might reasonably wish to make a contention (the **exemption contention**) that:
    - (i) the document is conditionally exempt under section 47F; and
    - (ii) access to the document would, on balance, be contrary to the public interest for the purposes of subsection 11A(5).

Note: Access must generally be given to a conditionally exempt document unless it would be contrary to the public interest (see section 11A).

- (2) In determining, for the purposes of paragraph (1)(b), whether the person concerned might reasonably wish to make an exemption contention because of personal information in a document, the agency or Minister must have regard to the following matters:
- (a) the extent to which the information is well known;
  - (b) whether the person to whom the information relates is known to be (or to have been) associated with the matters dealt with in the information;
  - (c) the availability of the information from publicly accessible sources;

- (d) any other matters that the agency or Minister considers relevant.

*Opportunity to make submissions*

- (3) The agency or Minister must not decide to give the applicant access to the document unless:
  - (a) the person concerned is given a reasonable opportunity to make submissions in support of the exemption contention; and
  - (b) the agency or the Minister has regard to any submissions so made.
- (4) However, subsection (3) only applies if it is reasonably practicable for the agency or Minister to give the person concerned a reasonable opportunity to make submissions in support of the exemption contention, having regard to all the circumstances (including the application of subsections 15(5) and (6) (time limits for processing requests)).

*Decision to give access*

- (5) If the agency or Minister decides to give access to the document, the agency or Minister must give written notice of the decision to both of the following:
  - (a) the person concerned;
  - (b) the applicant.

*Access not to be given until review or appeal opportunities have run out*

- (6) However, the agency or Minister must not give the applicant access to the document unless, after all the opportunities of the person concerned for review or appeal in relation to the decision to give access to the document have run out, the decision to give access still stands, or is confirmed.

Note 1: The decision to give access to the document is subject to internal review (see Part VI), review by the Information Commissioner (see Part VII) and review by the Tribunal (see Part VIIA).

Note 2: For when all opportunities for review or appeal in relation to the decision to give access to the document have **run out**, see subsection 4(1).

*Notice and stay of decision not to apply unless submission made in support of exemption contention*

- (7) Subsections (5) and (6) do not apply unless the person concerned makes a submission in support of the exemption contention as allowed under paragraph (3)(a).

*Edited copies and personal information*

- (8) This section applies:
  - (a) in relation to an edited copy of a document—in the same way as it applies to the document; and
  - (b) in relation to a document containing personal information—to the extent to which the document contains such information.

### **33 Documents affecting national security, defence or international relations**

A document is an exempt document if disclosure of the document under this Act:

- (a) would, or could reasonably be expected to, cause damage to:
  - (i) the security of the Commonwealth;
  - (ii) the defence of the Commonwealth; or
  - (iii) the international relations of the Commonwealth; or



- (b) would divulge any information or matter communicated in confidence by or on behalf of a foreign government, an authority of a foreign government or an international organization to the Government of the Commonwealth, to an authority of the Commonwealth or to a person receiving the communication on behalf of the Commonwealth or of an authority of the Commonwealth.

### 37 Documents affecting enforcement of law and protection of public safety

- (1) A document is an exempt document if its disclosure under this Act would, or could reasonably be expected to:
  - (a) prejudice the conduct of an investigation of a breach, or possible breach, of the law, or a failure, or possible failure, to comply with a law relating to taxation or prejudice the enforcement or proper administration of the law in a particular instance;
  - (b) disclose, or enable a person to ascertain, the existence or identity of a confidential source of information, or the non-existence of a confidential source of information, in relation to the enforcement or administration of the law; or
  - (c) endanger the life or physical safety of any person.
- (2) A document is an exempt document if its disclosure under this Act would, or could reasonably be expected to:
  - (a) prejudice the fair trial of a person or the impartial adjudication of a particular case;
  - (b) disclose lawful methods or procedures for preventing, detecting, investigating, or dealing with matters arising out of, breaches or evasions of the law the disclosure of which would, or would be reasonably likely to, prejudice the effectiveness of those methods or procedures; or
  - (c) prejudice the maintenance or enforcement of lawful methods for the protection of public safety.
- (2A) For the purposes of paragraph (1)(b), a person is taken to be a confidential source of information in relation to the enforcement or administration of the law if the person is receiving, or has received, protection under a program conducted under the auspices of the Australian Federal Police, or the police force of a State or Territory, for the protection of:
  - (a) witnesses; or
  - (b) people who, because of their relationship to, or association with, a witness need, or may need, such protection; or
  - (c) any other people who, for any other reason, need or may need, such protection.
- (3) In this section, **law** means law of the Commonwealth or of a State or Territory.

### 42 Documents subject to legal professional privilege

- (1) A document is an exempt document if it is of such a nature that it would be privileged from production in legal proceedings on the ground of legal professional privilege.
- (2) A document is not an exempt document because of subsection (1) if the person entitled to claim legal professional privilege in relation to the production of the document in legal proceedings waives that claim.

- (3) A document is not an exempt document under subsection (1) by reason only that:
- (a) the document contains information that would (apart from this subsection) cause the document to be exempt under subsection (1); and
  - (b) the information is operational information of an agency.

#### **45 Documents containing material obtained in confidence**

- (1) A document is an exempt document if its disclosure under this Act would found an action, by a person (other than an agency, the Commonwealth or Norfolk Island), for breach of confidence.
- (2) Subsection (1) does not apply to a document to which subsection 47C(1) (deliberative processes) applies (or would apply, but for subsection 47C(2) or (3)), that is prepared by a Minister, a member of the staff of a Minister, or an officer or employee of an agency, in the course of his or her duties, or by a prescribed authority or Norfolk Island authority in the performance of its functions, for purposes relating to the affairs of an agency or a Department of State unless the disclosure of the document would constitute a breach of confidence owed to a person or body other than:
- (a) a person in the capacity of Minister, member of the staff of a Minister or officer of an agency; or
  - (b) an agency, the Commonwealth or Norfolk Island.

#### **47 Documents disclosing trade secrets or commercially valuable information**

- (1) A document is an exempt document if its disclosure under this Act would disclose:
- (a) trade secrets; or
  - (b) any other information having a commercial value that would be, or could reasonably be expected to be, destroyed or diminished if the information were disclosed.
- (2) Subsection (1) does not have effect in relation to a request by a person for access to a document:
- (a) by reason only of the inclusion in the document of information concerning that person in respect of his or her business or professional affairs; or
  - (b) by reason only of the inclusion in the document of information concerning the business, commercial or financial affairs of an undertaking where the person making the request is the proprietor of the undertaking or a person acting on behalf of the proprietor; or
  - (c) by reason only of the inclusion in the document of information concerning the business, commercial or financial affairs of an organisation where the person making the request is the organisation or a person acting on behalf of the organisation.
- (3) A reference in this section to an undertaking includes a reference to an undertaking that is carried on by, or by an authority of, the Commonwealth, Norfolk Island or a State or by a local government authority.

#### **47B Commonwealth-State relations etc**

A document is conditionally exempt if disclosure of the document under this Act:

- (a) would, or could reasonably be expected to, cause damage to relations between the Commonwealth and a State (including a Territory)

#### 47E Public interest conditional exemptions—certain operations of agencies

A document is conditionally exempt if its disclosure under this Act would, or could reasonably be expected to, do any of the following:

- (a) prejudice the effectiveness of procedures or methods for the conduct of tests, examinations or audits by an agency;
- (b) prejudice the attainment of the objects of particular tests, examinations or audits conducted or to be conducted by an agency;
- (c) have a substantial adverse effect on the management or assessment of personnel by the Commonwealth, by Norfolk Island or by an agency;
- (d) have a substantial adverse effect on the proper and efficient conduct of the operations of an agency.

Note: Access must generally be given to a conditionally exempt document unless it would be contrary to the public interest (see section 11A).

#### 47F Public interest conditional exemptions—personal privacy

##### *General rule*

- (1) A document is conditionally exempt if its disclosure under this Act would involve the unreasonable disclosure of personal information about any person (including a deceased person).
- (2) In determining whether the disclosure of the document would involve the unreasonable disclosure of personal information, an agency or Minister must have regard to the following matters:
  - (a) the extent to which the information is well known;
  - (b) whether the person to whom the information relates is known to be (or to have been) associated with the matters dealt with in the document;
  - (c) the availability of the information from publicly accessible sources;
  - (d) any other matters that the agency or Minister considers relevant.
- (3) Subject to subsection (5), subsection (1) does not have effect in relation to a request by a person for access to a document by reason only of the inclusion in the document of matter relating to that person.

##### *Access given to qualified person instead*

- (4) Subsection (5) applies if:
  - (a) a request is made to an agency or Minister for access to a document of the agency, or an official document of the Minister, that contains information concerning the applicant, being information that was provided by a qualified person acting in his or her capacity as a qualified person; and
  - (b) it appears to the principal officer of the agency or to the Minister (as the case may be) that the disclosure of the information to the applicant might be detrimental to the applicant's physical or mental health, or well-being.
- (5) The principal officer or Minister may, if access to the document would otherwise be given to the applicant, direct that access to the document, so far as it contains that information, is not to be given to the applicant but is to be given instead to a qualified person who:

- (a) carries on the same occupation, of a kind mentioned in the definition of **qualified person** in subsection (7), as the first-mentioned qualified person; and
  - (b) is to be nominated by the applicant.
- (6) The powers and functions of the principal officer of an agency under this section may be exercised by an officer of the agency acting within his or her scope of authority in accordance with arrangements referred to in section 23.
- (7) In this section:

**qualified person** means a person who carries on, and is entitled to carry on, an occupation that involves the provision of care for the physical or mental health of people or for their well-being, and, without limiting the generality of the foregoing, includes any of the following:

- (a) a medical practitioner;
- (b) a psychiatrist;
- (c) a psychologist;
- (d) a counsellor;
- (e) a social worker.

Note: Access must generally be given to a conditionally exempt document unless it would be contrary to the public interest (see section 11A).

#### 47G Public interest conditional exemptions—business

- (1) A document is conditionally exempt if its disclosure under this Act would disclose information concerning a person in respect of his or her business or professional affairs or concerning the business, commercial or financial affairs of an organisation or undertaking, in a case in which the disclosure of the information:
- (a) would, or could reasonably be expected to, unreasonably affect that person adversely in respect of his or her lawful business or professional affairs or that organisation or undertaking in respect of its lawful business, commercial or financial affairs; or
  - (b) could reasonably be expected to prejudice the future supply of information to the Commonwealth, Norfolk Island or an agency for the purpose of the administration of a law of the Commonwealth or of a Territory or the administration of matters administered by an agency.
- (2) Subsection (1) does not apply to trade secrets or other information to which section 47 applies.
- (3) Subsection (1) does not have effect in relation to a request by a person for access to a document:
- (a) by reason only of the inclusion in the document of information concerning that person in respect of his or her business or professional affairs; or
  - (b) by reason only of the inclusion in the document of information concerning the business, commercial or financial affairs of an undertaking where the person making the request is the proprietor of the undertaking or a person acting on behalf of the proprietor; or
  - (c) by reason only of the inclusion in the document of information concerning the business, commercial or financial affairs of an organisation where the person

making the request is the organisation or a person acting on behalf of the organisation.

- (4) A reference in this section to an undertaking includes a reference to an undertaking that is carried on by, or by an authority of, the Commonwealth, Norfolk Island or a State or by a local government authority.
- (5) For the purposes of subsection (1), information is not taken to concern a person in respect of the person's professional affairs merely because it is information concerning the person's status as a member of a profession.

Note: Access must generally be given to a conditionally exempt document unless it would be contrary to the public interest (see section 11A).

This document has been released under  
The Freedom of Information Act 1982  
By the Department of Health and Aged Care



**Australian Government**  
**Department of Health**  
 Therapeutic Goods Administration

s47F

Our reference: LEX25053

By Email: s47F

Dear s47F

## FREEDOM OF INFORMATION REQUEST FOI 2389

### Notice of Internal Review Decision

1. I refer to your request for internal review dated 15 July 2021 of s22 decision of 15 July 2021 to release Documents 2, 3, 5 and 6 in part under section 47, subsection 47E(d) and paragraph 47G(1)(b) of the *Freedom of Information Act 1982 (the FOI Act)*.
2. In particular, you are seeking access to parts of the following documents in unredacted form:
  - Document 2: formulation and manufacturing processes have been redacted.
  - Document 3: formulation, study design, manufacturing processes and the sponsor's confidential business affairs have been redacted.
  - Document 5: formulation and study design have been redacted.
  - Document 6: formulation, study design and manufacturing processes have been redacted.
3. As set out below, the scope of your FOI request dated 15 February 2021 was revised on 2 May 2021 to be seeking access to the following documents in relation to the Pfizer COVID-19 vaccine:

| Module/Evaluation Area | Document/s                              |
|------------------------|-----------------------------------------|
| OVERALL                | Delegate's Overview                     |
|                        | Approval letter                         |
| ACV External Committee | Background document                     |
|                        | Ratified Minute                         |
| Reports                | Clinical overview                       |
|                        | Toxicology overview/Non-clinical review |
|                        | Risk Management Plan                    |

#### Decision maker

4. I am the Therapeutic Goods Administration (TGA) officer authorised to make this internal review decision under section 23 of the FOI Act.

#### Decision

5. At the outset, I note that I am releasing additional information to you which the initial decision-maker considered exempt under section 47 of the FOI Act. Specifically, I have decided to release additional information on pages 10, 11 and 30 of Part 1 of Document 5, and page 17 of Document 6.

6. I otherwise agree with the initial decision of 15 July 2021. I am notifying you of my decision to release Documents 2, 5 and 6 (in part) with commercially valuable information exempt under section 47 of the FOI Act. I have also decided to release Document 3 (in part) with commercially valuable information, business information and information affecting certain operations of the TGA exempt under section 47 and, further or in the alternative, conditionally exempt under subsection 47E(d) and paragraph 47G(1)(b) of the FOI Act. The reasons for my decision are set out in further detail below.

## Background

7. The relevant background to your request for internal review is set out below.
8. On 15 February 2021, the TGA received a request from you under the FOI Act (FOI-2248), for the following documents:

*"I request any and all documents relating or referring to the following regarding COVID-19 vaccine: Pfizer Australia - COMIRNATY BNT162b2 (mRNA)*

- 1. Document/s providing the information around the decision to exempt the above mentioned vaccine from the Therapeutic Goods (poisons standard) labelling*
  - 2. Document/s providing the full criteria of standards, safety and efficacy for any and all vaccine approvals and how the abovementioned vaccine has met this criteria for provisional use in Australia*
  - 3. Document/s providing the difference between the approval of "Provisional Use" and "Full TGA Approval"*
  - 4. Document/s providing a full list of ingredients including any ingredients disclosed and/or undisclosed that are considered poisonous*
  - 5. Document/s providing the clinical trials relied upon for approval, example at what phase of the study/trial including the full list of adverse reactions"*
9. On 29 April 2021, the TGA contacted you to suggest that you consider revising the scope of your request to the following documents on the basis that it was likely that the scope of your request would be too voluminous to process:

| Module/Evaluation Area         | Document/s          | Description                                                                                                                                                                                                                                                                               |
|--------------------------------|---------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| OVERALL                        | Delegate's Overview | A summary of the evaluation reports, and the reasoning behind the Delegate's proposed decision.                                                                                                                                                                                           |
|                                | Approval letter     | The Approval letter is the formal correspondence to the Sponsor regarding the positive outcome of the evaluations process.<br><br>The Approval letter contains; the decision to provisionally approve, duration and commencement of provisional registration, conditions of registration. |
| Advisory Committee on Vaccines | Background document | The advisory group for prescription medicines receives this document which includes the overview of the                                                                                                                                                                                   |



|                         |                                         |                                                                                                                                                                                                                                                                                                                                                                      |
|-------------------------|-----------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| (Independent Committee) |                                         | evaluation/Delegates concerns and requests for expert input.                                                                                                                                                                                                                                                                                                         |
|                         | Ratified Minute                         | An endorse record of the advisory groups meeting, including resolutions.                                                                                                                                                                                                                                                                                             |
| Reports                 | Clinical overview                       | A report summarising the information relating to the clinical aspect of clinical studies and the Pharmacokinetics, Pharmacodynamics, Clinical efficacy, Clinical safety, Ongoing studies, Risk Benefit Assessment, recommendations.                                                                                                                                  |
|                         | Toxicology overview/Non-clinical review | A report summarising the nonclinical data submitted, evaluation of nonclinical pharmacology and toxicology data submitted. Further, assessment and recommendations for sections of the Product Information that contain nonclinical data, including Use in Pregnancy and pregnancy categorisation.                                                                   |
|                         | Risk Management Plan                    | The RMP provides information on a medicine's safety profile, describes the activities of the marketing authorisation holder to further characterise the safety profile during post-marketing (pharmacovigilance activities), and explains the measures that are taken in order to prevent or minimise the medicine's risks in patients (risk minimisation measures). |

10. On 2 May 2021, you agreed to the TGA's proposed revision and the TGA created a distinct FOI request (FOI-2389) for the revised scope documents.

***Initial decision***

11. On 15 July 2021, the initial decision-maker notified you of her decision to release three (3) documents to you in full (with irrelevant material, namely, personal information, removed under section 22 of the FOI Act) and release four (4) documents in part.
12. The initial decision not to provide you with full access to Documents 2, 3, 5 and 6 was based on the application of section 47, subsection 47E(d) and paragraph 47G(1)(b) of the FOI Act.
13. The initial decision-maker's reasons for her decision are set out in further detail in paragraphs 24 – 51 of the decision dated 15 July 2021.



***Request for internal review***

14. On 15 July 2021, you requested internal review of the initial decision for the following reason:
- “...the main content of interest that was requested in the original foi has been blacked out [...] I therefore request an internal review to have these blacked out components of each document removed.”*
15. On 15 July 2021, the FOI team sought further details as to why you did not agree to the redactions to Documents 2, 3, 5 and 6 under section 47, subsection 47E(d) and paragraph 47G(1)(b) of the FOI Act.
16. On the same date, you responded and provided the scope of your other FOI request (FOI-2248) to suggest that this FOI request had not been fulfilled as the information was redacted.
17. On 16 July 2021, the FOI team advised you of their understanding of your request for internal review. Namely, that you are seeking an internal review of FOI-2389, with a view to obtaining full access to Documents 2, 3, 5 and 6 for the following reasons:
- that you have not received documents under FOI-2248; and
  - that you have not received full access to documents requested under FOI-2389.

**Material Considered in Decision-Making**

18. In coming to my decision, I had regard to the following:
- the terms of your FOI request;
  - the correspondence between the TGA and yourself;
  - the correspondence between the TGA and the third party whose documents are involved;
  - the initial decision;
  - your request for internal review;
  - the provisions of the FOI Act, in particular section 47, subsection 47E(d) and paragraph 47G(1)(b); and
  - Parts 5 and 6 of the guidelines published by the Australian Information Commissioner under section 93A of the FOI Act which can be found at <https://www.oaic.gov.au/freedom-of-information/foi-guidelines>.

**Reasons for Internal Review Decision**

19. I have decided to release additional information on pages 10, 11 and 30 of Part 1 of Document 5, and page 17 of Document 6, to you because I do not agree with the initial decision-maker's decision to exempt this information under section 47 of the FOI Act.
20. I otherwise agree with the initial decision dated 15 July 2021. I have decided to release Documents 2, 5 and 6 (in part) with commercially valuable information exempt under section 47 of the FOI Act. I have also decided to release Document 3 (in part) with commercially valuable information, business information and information affecting certain operations of the TGA exempt under section 47 and, further or in the alternative, conditionally exempt under subsection 47E(d) and paragraph 47G(1)(b) of the FOI Act.
21. A schedule listing the documents falling within the scope of this internal review decision are at **Attachment A**. A copy of the relevant provisions of the FOI Act are at **Attachment B**.

## Submissions in relation to Documents 2, 3, 5 and 6

### *Section 47: Documents are exempt if they contain a trade secret*

22. As set out above, I have decided that parts of the information in Documents 2, 3, 5 and 6 are exempt under section 47 of the FOI Act.
23. As set out in the initial decision dated 15 July 2021, under section 47 of the FOI Act a document is an exempt document if it contains a trade secret (paragraph 47(1)(a)) or contains information that has commercial value that could reasonably be expected to be destroyed or diminished if it were disclosed (paragraph 47(1)(b)). Any information that has a commercial value would also include any information that is a trade secret.
24. Having regard to the submissions of Pfizer, and taking into account the FOI Guidelines and the initial decision dated 15 July 2021, I am satisfied that the following non-public information contained in the documents is commercially valuable information, the value of which would be diminished or destroyed if released:
  - name of third-party testing facility and manufacturers' details;
  - specific processes, materials, methods and designs used to carry out the study; and
  - comprehensive and detailed data relating to the statistical analysis.
25. The documents were provided to the TGA as part of Pfizer's provisional registration application for its COVID-19 vaccine, COMIRNATY. I am satisfied that Pfizer has actively taken steps to ensure the information contained in these documents is not disclosed to the general public or its competitors, rather, it has only been submitted (in confidence) to regulatory bodies for the purpose of evaluating the product for supply in relevant jurisdictions.
26. The TGA's technical experts have indicated that only basic information in the documents are in the public domain. As far as the TGA is aware, the remainder of the information within the documents is not otherwise publicly available in Australia or other jurisdictions. Therefore, I am satisfied that the relevant information possesses an intrinsic commercial value that has not been diminished by disclosure to others.
27. I am aware that there are a great number of other companies around the world attempting to create a viable COVID-19 mRNA vaccine with various levels of success. I am satisfied that the release of this information is likely to provide competitors with insights into components of a successful application for the registration of an mRNA vaccine in Australia, and I am of the view that a competitor could use the information to replicate this study without expending the equivalent financial costs incurred by the third party.
28. I am satisfied that a competitor would be prepared to pay to obtain this information to assist it in submitting its own application for a similar product. Pfizer has invested substantial resources into the design and testing of its vaccine and this information would be of value to a competitor seeking to supply a similar vaccine, particularly an mRNA vaccine. I consider that the release of this information could enable a competitor to capitalise on, or replicate, the sponsor's trial results in order to obtain access to the market and/or gain a competitive advantage. On this basis, I am satisfied that a third party would be prepared to pay to obtain this information.
29. I am of the view that the information is current and retains its value. I note that Pfizer's vaccine has only been provisionally approved by the TGA since 25 January 2021, and there are a great

number of competitors globally who are in the process of trying to develop vaccines in relation to COVID-19.

### **Further and alternative submissions in relation to Document 3**

#### ***Subsection 47E(d): Documents affecting certain operations of agencies***

30. Further, and in the alternative to section 47 above, information in Document 3 is conditionally exempt under subsection 47E(d) of the FOI Act on the basis that it is necessary to protect the utility of the pre-submission meeting as a secure environment, fostering the ability to have meaningful and frank preliminary discussions with sponsors about all medicines, including COVID-19 vaccines.
31. The pre-submission meetings are part of the TGA's expected activities, and the primary purpose of the pre-submission meetings is to obtain a common understanding between the TGA and the sponsor and to resolve any issues before the sponsor submits an application (see paragraph 6.123 of the FOI Guidelines). Sponsors may submit a range of options to identify potential gaps, noting that this process does not form part of the actual evaluation of the product.
32. Public disclosure of this type of information could reasonably be expected to have a substantial adverse effect on the TGA's proper and efficient conduct of operations (see paragraph 6.95 of the FOI Guidelines), especially as disclosure could reasonably affect the willingness of sponsors to provide information to the TGA, impede the flow of information to the TGA and may result in less transparency from sponsors and fewer sponsors coming to market COVID-19 vaccines in Australia.

#### ***Paragraph 47G(1)(b): Documents disclosing business information***

33. Further, and in the alternative to section 47 and subsection 47E(d) above, I have decided that information in Document 3 is conditionally exempt under paragraph 47G(1)(b) of the FOI Act on the basis that the information concerns Pfizer's commercial affairs and any disclosure could reasonably be expected to prejudice the future supply of information to the TGA for the purpose of the administration of a law of the Commonwealth or the administration of matters administered by the TGA (see paragraph 6.197 of the FOI Guidelines).
34. Pfizer submitted the relevant information in the documents about its business affairs to the TGA on the basis that such information was commercially confidential information and would be used for the purposes of an assessment and provisional determination, as opposed to wider public distribution.
35. Pfizer and other sponsors of COVID-19 vaccines may be discouraged from providing a similar degree and type of information if they are concerned that reports (including full clinical and toxicology reports, including commercially confidential aspects such as the sponsor's study design, methodology and analysis), received for consideration by the TGA, may subsequently be made public.
36. Currently, Australia is considered a small market and the provision of vaccines remains an important priority for Australians. I consider that releasing this type of information to the public would discourage other sponsors from applying for provisional registration in Australia in relation to COVID-19 vaccines and potentially other medicines in the future.

37. Therefore, it could reasonably be expected that there will be a reduction in both the quantity and quality of business affairs information to the government, and the reduction will prejudice the operations of the TGA in the current COVID-19 environment (see paragraph 6.199 of the FOI Guidelines). In particular, the TGA is concerned that by releasing Pfizer's commercially confidential information, and information about its business affairs, there will be a reduction in information from Pfizer, as well as from other sponsors and, furthermore, other sponsors of COVID-19 vaccines will not be willing to consider entering the Australian market.

### **Public interest**

38. Sections 47E and 47G of the FOI Act are subject to the public interest test (see paragraph 6.2 of the FOI Guidelines). For the reasons set out above, the release of the information in Document 3 can reasonably be expected to prejudice public health or public safety because there is a clear public interest in having sponsors supplying COVID-19 vaccines in Australia (see paragraph 6.22(c) of the FOI Guidelines).
39. The release of the information could also reasonably be expected to prejudice the TGA's ability to obtain confidential information (see paragraph 6.22(h)), prejudice the TGA's ability to obtain similar information in the future (see paragraph 6.22(i)), and prejudice the management function of the TGA (see paragraph 6.22(n) of the FOI Guidelines).
40. If the TGA were to release Document 3 (in full) to the public, there is a tangible risk that the current sponsors with provisional approval will no longer consider the Australian market to be commercially viable and that other sponsors will not consider the Australian market for provisional registration of COVID-19 vaccines. It will therefore prejudice Australia's ability to obtain future supplies of the COVID-19 vaccines and could also prejudice Australia's ability to expand the market of COVID-19 vaccines.
41. Without the availability of the COVID-19 vaccines in the Australian market, there is a significant risk to public health and public safety, particularly in the context of the current COVID-19 outbreaks. Furthermore, there is a significant risk to public health and safety if Australia intends to re-open the borders to international travellers in the future. This applies to the general public, namely, it is in the interest of the public in its entirety to have access to the COVID-19 vaccines in Australia (particularly in the interests of those who are immunocompromised or particularly vulnerable to COVID-19).
42. The release of the information can reasonably be expected to impede the flow of information to the TGA, particularly in relation to the content of technical information required by the TGA to assess a COVID-19 vaccine, and could reasonably be expected to prejudice the TGA's ability to obtain similar information in the future.
43. I consider that, insofar as the public interest is served by the release of the documents in full, the public interest has already been met through the release of the documents in part (including publication on the disclosure log). The public interest has also been met through the information included in the supporting regulatory documents, such as the Australian Public Assessment Report (AusPAR) and the Product Information (PI) and the TGA's proactive publication of other information in relation to the COVID-19 vaccines, for example:
- <https://www.tga.gov.au/product-information-0>
  - [www.tga.gov.au/covid-19-vaccines](http://www.tga.gov.au/covid-19-vaccines)

- <https://www.tga.gov.au/covid-19-vaccine-provisional-registrations>
- [www.health.gov.au/initiatives-and-programs/covid-19-vaccines?utm\\_source=health.gov.au&utm\\_medium=redirect&utm\\_campaign=digital\\_transformation&utm\\_content=covid19-vaccines](https://www.health.gov.au/initiatives-and-programs/covid-19-vaccines?utm_source=health.gov.au&utm_medium=redirect&utm_campaign=digital_transformation&utm_content=covid19-vaccines)
- [www.tga.gov.au/batch-release-assessment-covid-19-vaccines](https://www.tga.gov.au/batch-release-assessment-covid-19-vaccines)
- <https://www.tga.gov.au/reporting-adverse-events>
- <https://www.tga.gov.au/covid-19-vaccine-pfizer-australia-comirnaty-bnt162b2-mrna>
- <https://www.tga.gov.au/covid-19-vaccine-astrazeneca-chadox1-s>
- <https://www.tga.gov.au/apm-summary/covid-19-vaccine-janssen>
- <https://www.tga.gov.au/sites/default/files/covid-19-vaccine-janssen-pi.pdf>
- <https://www.tga.gov.au/covid-19-vaccine-spikevax-elasomeran>
- <https://www.tga.gov.au/database-adverse-event-notifications-daen>
- <https://www.tga.gov.au/periodic/covid-19-vaccine-weekly-safety-report>
- <https://www.tga.gov.au/foi-disclosure-log> (for example, the documents released in FOI 2389, FOI 2183 and FOI 2289).

44. Release of the documents (in part) promotes the objects of the FOI Act and informs debate on a matter of public importance, namely, COVID-19 and the COVID-19 vaccination program. I consider that the factors against disclosure of the documents in full (set out above) outweigh those for disclosure of the documents in part. Release of the redacted information that is considered exempt, or conditionally exempt under the FOI Act, is therefore not, on balance, in the public interest.

### Review and Complaint Rights

45. If you are not satisfied with this decision, you are entitled to seek review by the Office of the Australian Information Commissioner (OAIC). A statement of your review and complaint rights is available at the following link:

<https://www.oaic.gov.au/freedom-of-information/reviews-and-complaints/information-commissioner-review/>

46. If you have any queries regarding this matter, please contact s22 on (02) 6289 s22 or the FOI Team on (02) 6289 4630.

Yours sincerely,



Dr Jane Cook  
First Assistant Secretary  
Medicines Regulation Division  
Therapeutic Goods Administration  
13 August 2021

## FOI Request 2389

## Schedule of Relevant Documents on Internal Review

| Doc. No. | Date            | Description                                                                                                                                                       | Redactions to the following pages | Decision                                          | Relevant Sections of the FOI Act |
|----------|-----------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------|---------------------------------------------------|----------------------------------|
| 2.       | 24 January 2021 | Notice of decisions to provisionally register medicine(s), to approve product information, and to impose conditions under the <i>Therapeutic Goods Act 1989</i> . | 23 – 25<br>27                     | Formulation and manufacturing processes redacted. | 47                               |

| Doc. No. | Date              | Description                                                                                                                                                                                                                                                                                                                                                                      | Redactions to the following pages                                                                                                                                                                                                                                                       | Decision                                                                                                                                                     | Relevant Sections of the FOI Act         |
|----------|-------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------|
| 3.       | 18 September 2020 | <p>ACV external committee background document: Pfizer's pre-submission meeting PowerPoint for the TGA and Pfizer's pre-submission briefing document for the TGA</p> <p><i>Please note that the tracked comments in this document were made to the original document and do not relate to the TGA's views on whether this information should be exempt under the FOI Act.</i></p> | <p>Part 1 of Document 3:</p> <p>21 – 25</p> <p>27 – 34</p> <p>45 – 55</p> <p>61 – 66</p> <p>69</p> <p>71 – 81</p> <p>83 – 87</p> <p>98</p> <p>100</p> <p>107 – 111</p> <p>113 – 116</p> <p>118 – 124</p> <p>127 – 137</p> <p>139</p> <p>142 – 145</p> <p>148 – 151</p> <p>175 – 176</p> | Formulation, study design and manufacturing information redacted, as well as business information and information that may affect the operations of the TGA. | <p>47</p> <p>47E(d)</p> <p>47G(1)(b)</p> |



| Doc. No. | Date           | Description                | Redactions to the following pages                                                    | Decision                                                        | Relevant Sections of the FOI Act |
|----------|----------------|----------------------------|--------------------------------------------------------------------------------------|-----------------------------------------------------------------|----------------------------------|
| 5.       | 8 January 2021 | Clinical evaluation report | Part 1 of Document 5:<br>10<br>28<br>43<br>Part 2 of Document 5:<br>1 – 4<br>11 – 12 | Study design, formulation and manufacturing processes redacted. | 47                               |



| Doc. No. | Date            | Description                                                                                                                                                                                                                                                                                                                                                              | Redactions to the following pages                                   | Decision                                                        | Relevant Sections of the FOI Act |
|----------|-----------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------|-----------------------------------------------------------------|----------------------------------|
| 6.       | 15 January 2021 | <p>Nonclinical evaluation report</p> <p><i>Please note that the information highlighted in yellow (and in some cases, struck-out or underlined) in this document was made to the original document and do not relate to the TGA's views on whether this information should be exempt under the FOI Act. We will need to make this clear in the decision letters.</i></p> | <p>4</p> <p>7</p> <p>17 – 19</p> <p>35 – 37</p> <p>40</p> <p>46</p> | Study design, formulation and manufacturing processes redacted. | 47                               |



## Freedom of Information Act 1982

### 47 Documents disclosing trade secrets or commercially valuable information

- (1) A document is an exempt document if its disclosure under this Act would disclose:
- (a) trade secrets; or
  - (b) any other information having a commercial value that would be, or could reasonably be expected to be, destroyed or diminished if the information were disclosed.
- (2) Subsection (1) does not have effect in relation to a request by a person for access to a document:
- (a) by reason only of the inclusion in the document of information concerning that person in respect of his or her business or professional affairs; or
  - (b) by reason only of the inclusion in the document of information concerning the business, commercial or financial affairs of an undertaking where the person making the request is the proprietor of the undertaking or a person acting on behalf of the proprietor; or
  - (c) by reason only of the inclusion in the document of information concerning the business, commercial or financial affairs of an organisation where the person making the request is the organisation or a person acting on behalf of the organisation.
- (3) A reference in this section to an undertaking includes a reference to an undertaking that is carried on by, or by an authority of, the Commonwealth, Norfolk Island or a State or by a local government authority.

### 47E Public interest conditional exemptions—certain operations of agencies

A document is conditionally exempt if its disclosure under this Act would, or could reasonably be expected to, do any of the following:

- (a) prejudice the effectiveness of procedures or methods for the conduct of tests, examinations or audits by an agency;
- (b) prejudice the attainment of the objects of particular tests, examinations or audits conducted or to be conducted by an agency;
- (c) have a substantial adverse effect on the management or assessment of personnel by the Commonwealth, by Norfolk Island or by an agency;
- (d) have a substantial adverse effect on the proper and efficient conduct of the operations of an agency.

Note: Access must generally be given to a conditionally exempt document unless it would be contrary to the public interest (see section 11A).

### 47G Public interest conditional exemptions—business

- (1) A document is conditionally exempt if its disclosure under this Act would disclose information concerning a person in respect of his or her business or professional

affairs or concerning the business, commercial or financial affairs of an organisation or undertaking, in a case in which the disclosure of the information:

- (a) would, or could reasonably be expected to, unreasonably affect that person adversely in respect of his or her lawful business or professional affairs or that organisation or undertaking in respect of its lawful business, commercial or financial affairs; or
  - (b) could reasonably be expected to prejudice the future supply of information to the Commonwealth, Norfolk Island or an agency for the purpose of the administration of a law of the Commonwealth or of a Territory or the administration of matters administered by an agency.
- (2) Subsection (1) does not apply to trade secrets or other information to which section 47 applies.
- (3) Subsection (1) does not have effect in relation to a request by a person for access to a document:
- (a) by reason only of the inclusion in the document of information concerning that person in respect of his or her business or professional affairs; or
  - (b) by reason only of the inclusion in the document of information concerning the business, commercial or financial affairs of an undertaking where the person making the request is the proprietor of the undertaking or a person acting on behalf of the proprietor; or
  - (c) by reason only of the inclusion in the document of information concerning the business, commercial or financial affairs of an organisation where the person making the request is the organisation or a person acting on behalf of the organisation.
- (4) A reference in this section to an undertaking includes a reference to an undertaking that is carried on by, or by an authority of, the Commonwealth, Norfolk Island or a State or by a local government authority.
- (5) For the purposes of subsection (1), information is not taken to concern a person in respect of the person's professional affairs merely because it is information concerning the person's status as a member of a profession.

Note: Access must generally be given to a conditionally exempt document unless it would be contrary to the public interest (see section 11A).